

ICICI BANK LIMITED'S (ALL-INDIA) STANDARD TERMS AND CONDITIONS FOR LOAN
AGAINST SECURITIES

1. DEFINITIONS AND CONSTRUCTION

In these terms and conditions (the “Standard Terms”, as referred to in the Application Form), unless there is anything repugnant to the subject or context thereof, the expressions listed below, shall have the following meanings:

“Application Form” means, duly executed Application Form for Loan against securities submitted by the Borrower to ICICI Bank Limited (“ICICI Bank”, which expression shall, unless it be repugnant to the subject or context thereof, include its successors and assigns) and any other document submitted by the Borrower to ICICI Bank for applying and availing the Facility (defined below).

“Borrower” means, jointly and severally, the applicant and co-applicants (if any) who has/ have been sanctioned and granted the Facility by ICICI Bank based on the Application Form submitted by such applicants and co-applicants (if any) to ICICI Bank and includes (a) its successors and permitted assigns, if the Borrower is a company within the meaning of the Companies Act 2013 or a society registered under applicable law; (b) each of the partners and their survivor(s) from time to time and their respective heirs, legal representatives, executors, administrators and permitted assigns, if the Borrower is partnership firm within the meaning of the Indian Partnership Act, 1932 or a Limited Liability Partnership Act, 2008 (LLP) ; (c) his / her heirs, legal representatives, executors, administrators and permitted assigns, if the Borrower is an individual and/or carrying on business as a sole proprietary concern; (d) the karta and each of the adult members of the Hindu Undivided Family (HUF) and their survivor(s) and his/ her / their respective heirs, legal representatives, executors, administrators and permitted assigns, if the Borrower is a HUF; and (e) the trustee(s) for the time being and the successors and permitted assigns of the trust/trustees, if the Borrower is a trust.

“Business Day” means a day on which the relevant/local branch of ICICI Bank specified in the Application Form, or such other office as may be notified by ICICI Bank to the Borrower, is open for normal business transactions.

“Due Date(s)” means, each of the date(s) on which any amount outstanding in relation to the Secured Obligations, is demanded by ICICI or is otherwise payable in terms of the Transaction Documents and / or communication issued by ICICI Bank (as applicable).

“Facility” means Loan Against Securities availed by the Borrower from ICICI Bank upon execution of Transaction Documents.

“Key Fact Statement” or “KFS” means the most important terms of the Facility, including the loan amount, interest rate, Penal Charges, tenor, repayment schedule and other terms of the Facility. These terms may be communicated to the Borrower through email / links over short message services (SMS), web links or by other means of physical or electronic communication.

“Loan Terms” means and refers collectively to (a) all the terms and conditions set out in the Application Form, (b) these Standard Terms, and (c) all terms and conditions specified in the other Transaction Documents.

“Market Risk” is the risk of potential losses arising from adverse movements in the market value of securities pledged with the Bank, which adverse movements may be on account of various reasons, including but not limited to changes in interest rates, currency exchange rates, equity prices, overall market sentiment and geo-political developments.

“Material Adverse Effect” shall mean the effect or consequence of any event or circumstance which is or is likely to be (i) adverse to the ability of the Borrower or any person to perform or comply with any of their respective obligations under the Transaction Documents; or (ii) prejudicial to any of its businesses or financial condition of the Borrower or any person who is party to any of the Transaction Documents.

“Material Terms” with respect to the Facilities, means the provisions relating to: (i) the payment/repayment obligation (including but not limited to principal, interest, fees, charges) of the Borrower under the Facility; (ii) creation/perfection/furnishing of securities in terms of Transaction Documents; (iii) any credit support (including, without limitation, any guarantee or indemnity) provided / agreed to be provided in relation to the Facility (iv) compliance with financial covenants, security related covenants and information covenants; and (v) end use of the Facility.

“Penal Charges” means an additional charge payable by the Borrower to the Bank in case of breach of any Material Terms.

“Secured Obligations” means and includes the outstanding principal amount of the Facility, all interest, all fees, costs, charges, expenses, Penal Charges, stamp duty and all other monies whatsoever payable by the Borrower to ICICI Bank in accordance with the Transaction Documents.

“Securities” means assets which are in the nature of securities/ instruments like insurance policy(ies), mutual fund units, shares, bonds etc or any other instrument which may be approved by ICICI Bank Limited from time to time.

“Transaction Documents” include all documents executed or entered into, or to be executed or entered into, by the Borrower and or any other person, as the case may be, in relation to the Facility, security created therefor, all related communications issued by ICICI Bank, Loan Terms and each such Transaction Document as amended from time to time.

1.A. In these Standard Terms, unless the contrary intention appears:

- (a) a reference to : (i) an "amendment" includes a supplement, modification, novation, replacement or re-enactment and "amended" is to be construed accordingly;
- (ii) an "authorisation" or “approval” includes an authorisation, consent, clearance, approval, permission, resolution, licence, exemption, filing and registration;
- (iii) an “encumbrance” includes a mortgage, charge, lien, pledge, hypothecation, security interest, assignment, easement, license or any right of any description whatsoever.
- (iv) “law” includes any constitution, statute, law, rule, regulation, ordinance, judgement, order, decree, authorisation, or any published, directive, guideline, requirement or governmental restriction having the force of law, whether in effect as of the date of

execution/submission of the Transaction Documents or thereafter and each as amended from time to time.

(b) the singular includes the plural (and vice versa);

(c) the headings in these Standard Terms are inserted for convenience of reference only and are to be ignored in construing and interpreting the same;

(d) reference to the words “include” or “including” shall be construed without limitation;

(e) reference to a gender shall include references to the female, male and neuter genders;

(f) all approvals, permissions, consents or acceptance required from ICICI Bank for any matter shall require the prior written approval, of ICICI Bank;

(g) in the event of any disagreement or dispute between ICICI Bank and the Borrower regarding the materiality, likelihood, or reasonableness of any matter arising out of the Transaction Documents, the opinion of the Bank shall be final and binding.

Note: All capitalised terms used here but not specifically defined herein shall have the respective meanings ascribed to them under the Application Form.

2. FACILITY

(i) The Facility may be drawn by the Borrower or such other person/s as may be designated by the Borrower, subject to compliance with the terms of the Transaction Documents. ICICI Bank may, at the request of the Borrower, make allow drawals under the Facility by cheques/pay orders/authorisations. The Borrower shall at all times confine the drawals from the Facility within the drawing power unless specifically permitted by the Bank. In the event of any excess drawings, all the terms of the Transaction Documents, including the benefit of the collateral shall stand extended to cover such excess drawings without any further action.

(ii) The Borrower shall not use the Facility (or any part thereof) for any purpose other than the purpose specified in the Application Form, or for any speculative, improper or illegal or unlawful purposes or for arbitrage operations in stock exchanges. The Borrower shall not utilize the loan proceeds for any purpose prohibited under regulatory guidelines, including but not limited to investment in capital markets beyond the permissible limits. If the Bank demands a specific certificate from the Borrower through the Borrower's Statutory Auditors or Chartered Accountants, the Borrower shall furnish a certificate, in a format acceptable to the Bank, affirming that the Facility has been utilized by the Borrower for the Purpose.

(iii) In the event any monies are remaining due and payable by the Borrower to ICICI Bank, whether under the Transaction Documents or otherwise, ICICI Bank may, at its sole discretion, reduce the limits available for drawdown under the Facility and all such adjustments shall be treated as drawals by the Borrower under the Facility.

(iv) During the subsistence of the Facility if the Borrower changes his status to a non-resident, ICICI Bank may at its sole discretion allow continuance of the Facility or suspend/cancel the Facility after appropriating the Securities and/or adjusting the proceeds thereof, against the Secured Obligations.

(v) The Borrower acknowledges that the Facility provided is a commercial transaction and waives any defense available under usury or other laws relating to charging of interest. Once the Application Form has been submitted by the Borrower and is acknowledged by ICICI Bank, the Borrower shall not be entitled to cancel the Facility or refuse to accept disbursement of the Facility, except where such request is (a) made during the cooling off period (as per KFS), (b) approved by ICICI Bank; and (c) accompanied with payment of cancellation or foreclosure charges as may be stipulated by ICICI Bank.

(vi) ICICI Bank shall, at its sole discretion, be entitled to vary or restrict the amounts available for drawdown under the Facility in the event the Loan-to-Value ("LTV") ratio or margin requirement prescribed by ICICI Bank (in accordance with guidelines issued by RBI) is likely to breach or is breached due to fluctuation in value of the pledged/ lien marked Securities. In the event of shortfall in the prescribed LTV, as mentioned herein, the Borrower shall immediately bring in additional collateral and / or repay the outstanding amount so as to restore the LTV to the prescribed level, stipulated herein. The Borrower authorize ICICI Bank, to debit the bank account(s) of the Borrower (whether held jointly or singly) maintained with ICICI Bank, liquidate, sell, or dispose of the pledged/ lien marked Securities, in part or full, to reduce the outstanding amount under the Facility so as to restore the LTV requirement at below prescribed percentage.

(vii) In the event the LTV reaches or exceeds the regulatory limit prescribed by Reserve Bank of India ("RBI"), ICICI Bank shall initiate necessary actions to regularize the account to restore the LTV within the prescribed limit within a period of 7 (seven) days. The Borrower agrees that such rectification shall be undertaken at the sole discretion of ICICI Bank, including by way of enforcement of pledge/ lien through sale or disposal of Securities (in part or full) and that ICICI Bank shall not be obliged to await additional collateral or repayment from the Borrower. ICICI Bank may also restrict or suspend further drawdown under the Facility; and/or debit any account(s) of the Borrower maintained with ICICI Bank. The Borrower agrees that the valuation of Securities and determination of LTV by ICICI Bank shall be final and binding.

3. Payment and Repayment

(i) The Borrower shall pay interest and all other charges on the Facility at the rate/s and on the Due Date(s) specified in the KFS and Application Form. The rate at which interest is payable by the Borrower in relation to the Facility, shall be subject to changes based on guidelines / directives issued by Reserve Bank of India ("RBI") to banks from time to time and ICICI Bank will be obliged to give effect to any revision of interest rates, whether upwards or downwards, on all existing advances/financial assistances including Facility as per the RBI guidelines/directives.

(ii) ICICI Bank shall notify any such change in the rate of interest to the Borrower either through email address as recorded with ICICI Bank (which will be regarded as being in writing), by sending them by post to the last address given by the Borrower, publishing on

its website or any other mode as may be deemed fit by ICICI Bank. Such notice will be deemed to have been served individually to the Borrower and all relevant persons and shall be binding upon the Borrower and such persons. The Borrower and such persons shall not be entitled to dispute or question the same on any ground whatsoever.

(iii) The Borrower shall, unless otherwise agreed to by ICICI Bank in writing, repay / pay the Secured Obligations on Due Dates. The Borrower's liability for repayment of the Secured Obligations shall, in cases where more than one Borrower has jointly applied for the Facility, be joint and several.

(iv) Unless otherwise stipulated in the Transaction Documents, all monies payable by the Borrower to ICICI Bank shall be paid into the account through which the Borrower was allowed the operation of the Facility or to such other account(s) as ICICI Bank may notify to the Borrower or by cash or by cheque/bank draft drawn in favour of ICICI Bank on a scheduled bank and shall be so paid as to enable ICICI Bank to realise, at par, the amount on or before the relative Due Date. Credit for all payments by cheque/bank-draft will be given only on realization. ICICI Bank may, in its sole discretion, require the Borrower to adopt or switch to any alternate mode of payment and the Borrower shall comply with such request, without demur or delay.

(v) Interest:

(a) The rate of interest ('Interest Rate') of the Facility stipulated by the Bank shall be the sum of the Repo Rate* + 'Spread' per annum, plus an applicable statutory levy, if any, and shall be charged on the principal amount of the Facility remaining outstanding each day. The applicable Repo Rate shall be the rate prevailing one business day preceding the date of Account opening/limit set-up/renewal.

(b) The Repo Rate component of the interest rate shall be reset after every 3 months following the date of Account opening/limit set-up/renewal (as applicable), as a sum of Repo Rate + 'Spread' plus applicable statutory levy, if any. The applicable Repo Rate shall be the rate prevailing one business day preceding the reset date**.

**Illustration: For Account opening/limit set-up/renewal made on Oct 05, 2019, the first reset date will be Jan 05, 2020 and thereafter Apr 05, 2020 and so on.

The Bank shall have the right to modify the reset frequency and the reset date from time to time in accordance with the existing RBI guidelines. The borrower further acknowledges that the interest rate may change upwards or downwards as the case may be, in line with a change in the Repo Rate. The Bank reserves the right to reset the spread at any time upon a substantial change in the borrower's credit assessment and/or on account of deterioration in the credit risk profile.

(c) Any change in the 'Spread' would be communicated by the Bank through either: (i) Letter (ii) E-mail (iii) SMS (iv) Statements of Accounts (v) WhatsApp or through any other suitable mode. The borrower shall be deemed to have noticed the changes in the Repo Rate when displayed on the Branch's notice board or when displayed on the Bank's website (www.icici.bank.in) and the borrower is liable to pay such revised rate of interest.

(d) The interest on the outstanding amount under the Facilities shall be debited/charged to the Account on the 2nd day of every month for the interest period. 'Interest Period' means the period commencing from the interest debit date in the preceding calendar month and ending one day prior to the interest debit date of the following calendar month. Initially, the Interest shall be debited/charged from the date of first utilisation in a calendar month up to one day prior to the interest debit date of the following calendar month and thereafter the interest shall be debited/charged on the 2nd day of every month. If the Due Date with respect to any amount payable under the Facilities falls on a non-business day, the immediately succeeding business day shall be the Due Date for such payment. GST levied under the applicable laws as may be amended from time to time would be additionally charged.

(e) Interest payment date/s: Interest on the Facility shall be payable to ICICI Bank by the Applicant(s) immediately upto debit of interest.

(f) The Facility shall be renewed at the sole discretion of ICICI Bank, subject to no events of default and satisfactory conduct of the Account by the Applicant(s).

(vi) (a) Notwithstanding the mode of repayment/payment adopted by the Borrower, the Borrower shall continue to remain liable at all times for ensuring the payment/repayment of the Secured Obligations to ICICI Bank on or before the relevant Due Date(s) without any further notice being given by ICICI Bank and all such amounts payable by the Borrower to ICICI Bank shall be paid, at such place/s or in such manner as ICICI Bank may specify, without any deductions whatsoever (save such deductions as are required to be made under applicable law).

(b) The Borrower shall not be entitled to cancel or issue stop-payment instructions with respect to the post-dated cheques for so long as any part of the Secured Obligations are outstanding and any such act of the Borrower shall be deemed to have been committed with an intention to cheat ICICI Bank and to avoid prosecution under law.

(c) ICICI Bank may call upon the Borrower to replace the post-dated cheques and/or mandates where ICICI Bank is facing any difficulty/inconvenience for any reason whatsoever in presenting such cheques / issuing debit instructions or where ICICI Bank deems such cheques/mandates fit to be replaced at its sole discretion and the Borrower agrees to promptly do so.

(d) The Borrower may, subject to prior approval by ICICI Bank, be permitted to swap/exchange the postdated cheques issued to ICICI Bank with alternate post-dated cheques drawn on another bank (as approved by ICICI Bank) subject to payment to ICICI Bank of the “cheque swap” charges as specified in the KFS.

(vii) The Borrower may, with the prior approval of ICICI Bank (which approval may be given subject to conditions stipulated by ICICI Bank including payment of prepayment charges), prepay the Secured Obligations, in full or in part, before the Due Date(s). The Securities shall be released to the Borrower only upon repayment of Secured Obligations in full to ICICI Bank.

(viii) Any credit for any repayments / payments made in relation to the Secured Obligations shall be given only upon realization.

(ix) In the event of prepayment by the Borrower, ICICI Bank shall, upon request being made by such Borrower, return the post-dated cheques, lying with ICICI Bank within 30 (thirty) days from the date of realization of credit against the Secured Obligations. In the event the Borrower fails to collect such post-dated cheques, ICICI Bank reserves the right to destroy the said cheques in such manner as it may deem fit. The Borrower agrees that even after prepayment of the Facility, post-dated cheques may be presented by ICICI Bank for the next month and in case any amount for the same is realized, ICICI Bank shall refund the amount so refunded within 30 days of the Borrower making such request.

(x) All interest due and remaining unpaid on the Due Date shall be capitalised and added to the outstanding amount and shall thenceforth carry interest at the applicable interest rate on a compounding basis payable on the aggregate amounts then due till the amount is paid/repaid.

(xi) (a) Without prejudice to ICICI Bank's rights and remedies under contract and law, in the event any amount due under the Facility remains unpaid on the Due Date or Borrower fails to create security and/or commits breach of any of the Material Term(s) of the Facility, ICICI Bank shall have the right to levy and recover Penal Charges, at its sole discretion, at the rate specified in the KFS. Upon levy of such Penal Charges, the Borrower shall pay the said Penal Charges along with applicable Goods and Service Tax (GST), other taxes (of any description whatsoever), charges and penalties which may be payable pursuant to applicable law, from time to time, in relation to the Facility.

(b) The Borrower acknowledges and agrees that the Penal Charges are reasonable and commensurate to non-compliance of Material Terms of the Transaction Documents.

(xii) Interest and all other charges shall accrue from day to day and shall be computed on the basis of 365 days a year and the actual number of days elapsed and interest on the outstanding amounts when debited by the Bank, shall be calculated on the daily debit balance.

(xiii) If the Due Date (as specified in the Application) in respect of any amounts payable under the Facility falls on a day, which is not a Business Day at the place where the payment is to be made, the immediately preceding business day shall be the Due Date for such payment.

(xiv) The Borrower shall bear all interest tax, service tax, all other imposts, duties (including stamp duty and relevant registration and filing charges, if any, in connection with the Facility), charges, costs, fees, expenses and taxes as may be levied from time to time by the Government or other authority in respect of or in connection with the Facility and/or the Transaction Documents as may be required to be paid under law. In the event of the Borrower failing to pay the monies referred to above, ICICI Bank shall be at liberty (but shall not be obliged) to pay the same.

(xv) The Borrower shall reimburse all sums paid by ICICI Bank (including by or on behalf of their representatives / consultants / appraiser) in relation to the Facility within 7 Business Days from the date of notice of demand from ICICI Bank. All such sums shall carry interest from the date of payment by ICICI Bank till the date such reimbursement is realized, at the same rate as is specified in KFS and may be debited to the relevant bank account held by the Borrower and specified in the Application Form.

(xvi) All payments by the Borrower in connection with the Facility shall be made free and clear of and without any deduction, except to the extent that the Borrower is required under law to make payment subject to any tax deduction at source under the applicable law. However, where all taxes are required by law to be deducted by the Borrower from any amounts paid or payable under the Loan Terms and the Transaction Documents including but not limited to interest, commission, discount, service and other charges, any fees, such taxes shall be paid by the Borrower. The Borrower shall, within the timelines prescribed under the law or 20 days of the payment being made, whichever is earlier, deliver to ICICI Bank satisfactory evidence in accordance with the prevailing tax laws, that the tax has been deducted at source and duly remitted to the appropriate authority.

(xvii) Notwithstanding any of the provisions of the Indian Contract Act, 1872 or any other law, ICICI Bank may, at its absolute discretion, appropriate any payments made by the Borrower against Secured Obligations and amounts realized by ICICI Bank through liquidating the Securities, towards the dues payable by the Borrower to ICICI Bank under such Secured Obligations and/or any other agreements or facilities, and in any manner whatsoever. All accounts of such sale, surrender, disposal or realisation of the Securities rendered by ICICI Bank shall be conclusive evidence of all matters in relation thereto.

4. Security

(i) The Borrower shall create/cause to be created such security on the Securities (including on any account/s to the extent sale proceeds of such Securities are credited into it), and/or cause such guarantee/s to be furnished, in favour of ICICI Bank as and when required by ICICI Bank and in a form and manner satisfactory to ICICI Bank to secure the performance

of its obligations including payment / repayment of the Secured Obligations. The Borrower agrees to create security within such period as may be required by ICICI Bank and the Borrower shall comply with all formalities in relation to such creation (and perfection) of security / furnishing of guarantee/s to the satisfaction of ICICI Bank.

(ii) Security, so created by the Borrower, in favour of ICICI Bank, shall continue until all obligations (including Secured Obligations) under the Transaction Documents have been duly discharged in full by the Borrower. ICICI Bank shall have no obligation to return the Securities to the Borrower until such time.

(iii) ICICI Bank shall maintain a list of approved securities and only such securities are eligible to be placed (and continue to be placed) with the Bank as a security for availing the Facility. These Securities are subject to revision from time to time by the Bank and the Borrower shall acquaint himself with such revised list as is displayed and updated on a periodic basis on ICICI Bank's website. It is hereby clarified that the Borrower can only request for disbursement to the extent that the securities form part of the approved securities list and fulfil the required margin requirement.

(iv) The Securities furnished by the Borrower comprise of equity shares, bonds, mutual funds, Sovereign Gold Bond, Tax Free Bonds, Government Securities Bonds, ETF traded on stock exchange(s) and Insurance policy(ies) such Securities may be revalued as per bank policy in accordance with applicable guidelines issued by RBI and prevailing market prices obtained from authorized sources.

(v) ICICI Bank shall have the right to revalue such Securities at such frequency as it may deem fit, including on a daily basis, and to determine the drawing power and permissible limits under the Facility based on the applicable LTV ratio. (Listed shares and units of mutual funds/ETFs shall be valued at lower of the average daily closing prices/NAVs for the last six months or the closing price/NAV of the previous trading day)

(vi) The Borrower acknowledges and agrees that ICICI Bank may prescribe an internal LTV requirement which may be more stringent than the regulatory LTV prescribed by RBI.

(v) The Security, if any, which is already created in favour of ICICI Bank, and subsequently declared by ICICI Bank to be unacceptable shall nevertheless continue to be maintained in ICICI Bank's favour, unless it is released by ICICI Bank.

(vi) All monies, accretions, benefits or entitlements in respect of the Securities (collectively, "Accretions") shall also form part of the security created/to be created in favour of ICICI Bank without any further act or deed. In the event any part of the Securities or Accretions in respect thereof are paid to/come into the possession of the Borrower without the approval of ICICI Bank, the Borrower shall promptly deliver to and deposit with ICICI Bank, all such Accretions. Until the Borrower so delivers the Accretions, the Borrower shall hold it in trust

for ICICI Bank. Any omission or failure by the Borrower for any reasons whatsoever to deliver and deposit such Accretions to ICICI Bank shall be deemed to have been committed/omitted with an intention to defraud ICICI Bank and ICICI Bank shall be entitled to initiate appropriate civil and criminal proceedings against the Borrower.

(vii) ICICI Bank shall not be liable for any loss or damage or diminution in value sustained / realised thereby or for any loss or diminution in value of, the securities on any account whatsoever by reason of exercise or non-exercise of any rights and remedies available to ICICI Bank as aforesaid. The Borrower shall also not be entitled to raise any claim against ICICI Bank on the grounds that a larger sum might have or ought to have been received from the sale of Securities; or dispute the liability of the Borrower for the balance amount of Secured Obligations remaining due after adjustment of such sale proceeds in accordance with the provisions of the Transaction Documents.

(viii) The Borrower shall not transfer or create encumbrance over the Securities in favour of a third person in any manner whatsoever.

(ix) The original documents pertaining to the Securities (if any) held by the Bank will be handed over within 30 days from the date of full repayment/settlement of the Facility at the branch where the loan account was serviced or nearest loan servicing branch as per the Applicant's communication address or any other loan servicing branch as opted for by the Applicant expressly. The release of original property documents shall be subject to no dues being payable in respect of this Facility or any other credit facility availed by the Applicant, for which the said property was secured with the Bank.

(x) in the case of insurance policies, the Borrower must inform the bank of any change in address of the branch /office of the policy issuer. Please note that the bank will not be liable or responsible for any delay due to non updation of the correct address.

5. Representations and Warranties

In addition to the representation and warranties contained in the Application Form, the Borrower represents, warrants, agrees and undertakes as follows:

a) The Borrower has fully read and understood the Application Form, the Loan Terms and other Transaction Documents and has agreed to be bound by the same for availing the Facility from ICICI Bank.

b) The Borrower has the competence and power to carry on its business and operations as it is being or is proposed to be conducted.

c) The Transaction Documents have been duly and validly executed by the Borrower or on behalf of the Borrower and each Transaction Document constitutes or when executed in

accordance with its terms will constitute, legal, valid and binding obligations of the Borrower enforceable in accordance with their respective terms.

d) The entry into, delivery and performance by the Borrower of, and the transactions contemplated by the Transaction Documents do not and will not conflict: (a) with any law; (b) wherever applicable, with the constitutional documents, of the Borrower; or (c) with any document which is binding upon the Borrower or on any of its/her/his/their assets.

e) The Borrower shall not induct a person identified as wilful defaulter in any capacity where such a person is on its board or is in charge and responsible for the management of its affairs. In the event the person so inducted is found to be wilful defaulter, the Borrower shall take immediate steps for removal of such persons. In case the Borrower is an individual, the Borrower must promptly notify ICICI Bank upon being declared a willful defaulter.

f) The Borrower agrees that the Bank may suspend usage of the sanctioned limits in the event the Borrower is declared a wilful defaulter under the applicable RBI regulations and guidelines.

g) No default is subsisting or might result from the execution of the Transaction Documents, or the availing of the Facility by the Borrower hereunder.

h) All the information provided by the Borrower is true, complete and updated in all material respects, is not misleading and does not omit any material fact, the omission of which would make any fact or statement therein misleading.

i) The Borrower has complied in all material respects with all taxation laws in all jurisdictions in which it is subject to taxation and there are no statutory dues payable by it/him/her/them under other laws or pending disputes / proceedings relating to income tax or any other tax dues.

j) All acts, conditions and authorisations required to be undertaken, met or obtained in relation to performance of Borrower's obligations, have been undertaken, met and obtained and are in force and are not threatened to be, revoked or cancelled .

k) The Borrower has not received any notice, nor is it aware that any authorization necessary or required to be obtained in future, will not be granted or obtained.

l) The Borrower has full right, title and interest in the Securities and the Securities are free from encumbrances of any nature whatsoever.

m) Neither the Borrower nor any other person benefiting in any capacity in connection with or from this Agreement and/or any instruments and/or payments thereunder is a Specially Designated National (SDN) and/or otherwise sanctioned, under the sanctions (and related

laws) promulgated by the United States (including its Office of Foreign Assets Control (OFAC)), India, United Nations, European Union, the jurisdiction of the Facility Office and/or any other country (collectively, the "Sanctions").

n) In the event the Borrower is a non-resident Indian ("NRI"): (i) The Borrower is eligible under the provisions of Foreign Exchange Management Act, 1999 and the rules / regulations made thereunder to avail the Facility (collectively, FEMA regulations). (ii) There is no direct or indirect foreign exchange consideration received by the Borrower or any other person for agreeing to place the Securities to avail the Facility. (iii) The Facility will be utilized only for the permitted activities under the FEMA regulations and not for the purpose of re-lending or carrying on agricultural / plantation activities or investment in real estate business. (v) There is no restriction on third party security provider to furnish Security for the Facility.

(o) Except to the extent disclosed to the Bank:

(i) (a) No director of the Bank is: a director, manager, managing agent, employee or guarantor of the Borrower, or of a subsidiary of the Borrower, or of the holding company of the Borrower, or holds substantial interest, in the Borrower or a subsidiary or the holding company of the Borrower and no director of any other bank (including scheduled co-operative banks), or directors of subsidiaries/trustees of mutual funds/venture capital funds set up by the Bank or any other bank holds substantial interest or is interested as director or as a guarantor of the Borrower and the Borrower is in compliance with all Applicable Laws including RBI's 'Master Circular on Loans and Advances', as amended and replaced from time to time.

(b) No relative (as specified by RBI) of a Chairman / Managing Director or director of banking company (including the Bank) or their subsidiaries or trustees of mutual funds/venture capital funds set up by a banking company (including the Bank) or a relative of senior officer (as specified by RBI) of the Bank, hold substantial interest or is interested as a director or as guarantor of the Borrower.

(ii) Borrower has not taken any action and no other steps have been taken or legal proceedings initiated by or against it in any court of law, before other authorities for its insolvency, bankruptcy, winding up, dissolution, administration or re-organisation or for the appointment of a receiver, administrator, administrative receiver, trustee or similar officer of the Borrower or of any or all of its assets.

(iii) No litigation, arbitration, administrative or other proceedings are pending or threatened against the Borrower or its assets, which, if adversely determined, might have a Material Adverse Effect.

6. Undertakings

In addition to the undertakings contained in the Application Form, the Borrower undertakes as follows:

(a) The Borrower shall comply with (i) all laws applicable to its business and occupation (ii) terms and conditions of the Transaction Documents.

(b) The Borrower shall keep and maintain all statutory books, books of accounts and other records of the Borrower (in particular, records showing the operations and financial conditions of the Borrower) in accordance with good business practice and applicable law. The Borrower shall ensure that such records are open to examination by the Bank.

(c) The Borrower shall not repay the loans and advances of the promoter group or partners, co-parceners / karta in whole or in part or pay any interest thereon until such time as the entire outstanding Facility is repaid in full.

(d) The Borrower shall execute / furnish such deeds, documents and writings and do all such acts, deeds and things as may be required by ICICI Bank in connection with the Facility.

(e) The Borrower shall forthwith notify ICICI Bank of any change in its address for communication as stated in the Application Form.

(f) All such transactions effected by or through facilities for conducting remote transactions including the internet, world wide web, electronic data interchange, call centres, teleservice operations (whether voice, video, data or combination thereof) or by means of electronic, computer, automated machines network or through other means of telecommunication, established by or on behalf of ICICI Bank or its affiliates, for and in relation to the Facility, shall constitute legally binding and valid transactions.

(g) Where the accounts are required to be audited under applicable law, the most recent audited accounts of the Borrower: (a) have been prepared in accordance with applicable accounting principles and practices generally accepted and consistently applied; (b) have been duly audited by the statutory auditors, if any, of the Borrower; and (c) represent a true and fair view of its financial condition as at the date to which they were drawn up and there has been no Material Adverse Effect since the date on which those accounts were drawn up.

(h) The Borrower hereby gives specific consent to the Bank for disclosing / submitting the 'financial information' as defined in Section 3 (13) of the Insolvency and Bankruptcy Code read with the relevant regulations/ rules framed under the Code in respect of the credit/ financial facilities availed from the Bank, from time to time, to any 'Information Utility' ('IU' for brief) as defined in Section 3 (21) of the Insolvency and Bankruptcy Code, in accordance with the relevant Regulations framed under the Code, and directions issued by Reserve Bank of India to the banks from time to time and hereby specifically agree to promptly authenticate the 'financial information submitted by the Bank/Lender, as and when requested by the concerned 'IU'.

(i) Without the prior written consent of the Bank:-

(l) The Borrower shall not establish a relationship with any other bank except with a 15 (fifteen) days notice, in case the Borrower has a sole banking arrangement with the Bank.

(II) Effect any change in the constitution of the Borrower and provide such details in respect of the change and its effect, as may be required by ICICI Bank.

(III) Pay any commission to its promoters, directors, managers or other persons for furnishing guarantees, counter guarantees or indemnities or for undertaking any other liability in connection with any indebtedness incurred by the Borrower or in connection with any other obligation undertaken for the Borrower.

(j) The Borrower shall keep themselves informed of the drawals amounts, overdrawn amounts (if any), outstanding dues and ICICI Bank's LTV requirements as may be prescribed from time to time. In case the account is overdrawn at any given point, the same must be replenished immediately. Borrower is required to ensure that there are no overdrawn amounts beyond the available limits sanctioned under the Facility. The LTV ceilings represent ICICI bank's internal policy limits and are subject to applicable regulatory ceiling prescribed by the Reserve Bank of India.

LTV Ceiling – ICICI Bank Policy		
S.No.	Eligible Securities	LTV Ceiling
1	Listed Shares	55%
2	Mutual Funds Equity	70%
3	Mutual Funds Debt	80%
4	Insurance Policy	90% in case of traditional insurance policies, 80% in case of debt ULIPs & 50% in case of equity ULIPs.
5	Sovereign Gold Bonds	70%
6	Government Securities	Up to 2 years to maturity – 85% LTV 2-5 years to maturity – 80% LTV 5-15 years to maturity – 75% LTV
7	Listed Debt Securities	Listed Debt Securities with rating AAA: 80% Listed Debt Securities with rating from AA to BBB: 70%
Note - The LTV shall be determined by ICICI Bank at the time of sanction and may be lower than the limit prescribed above based on ICICI Bank's policy / risk assessment /prevalent market scenario. ICICI Bank reserves the right to revise the LTV and/or drawing power at any time during the tenor of the facility. In case the LTV exceeds the applicable internal limit, the account shall be treated as overdrawn. Any deviation in the LTV requirement shall be at the sole discretion of ICICI Bank. If there are shares pledged in the account which are in the multiple lending category, then the credit limit contributed individually by each of these scrips will be capped to 75% of the total account credit limit. If any of such scrips in the account is contributing to more than 75% of the credit limit, we will revise the credit limit accordingly. You may view the category of scrips on ICICI Bank website: https://www.icici.bank.in/personal-banking/loans/loan-against-securities/approved-scrips		

7. Rights of ICICI Bank

(i) The Bank shall have the paramount right of lien and set off, irrespective of any other lien or charge, present as well as future on the deposits of any kind and nature held / balances lying in any accounts of the Borrower or deposits maintained by such Borrower, whether in single name or joint name(s) (for which, the Borrower hereby confirms that the requisite consent has already been procured by the Borrower from the relevant third party) and on any monies, securities, bonds and all other assets, documents and properties held by / under the control of the Bank and/or its group companies whether by way of security or otherwise pursuant to any contract entered / to be entered into by the Borrower in any capacity to the extent of all outstanding dues, whatsoever, arising as a result of any of the Bank's services extended to and/or used by the Borrower and/or as a result of any other facilities that may be granted by the Bank to the Borrower.

(ii) The Bank shall be entitled to settle any indebtedness whatsoever owed by the Borrower to the Bank by adjusting, setting-off any deposit(s) and/or transferring monies lying to the balance of any account(s) held by the Borrower with the Bank to combine or consolidate all or any of the accounts and liabilities of the Borrower including accounts not related to the Facilities, to sell any of the Borrower's assets or properties held by the Bank and/or its group companies. The Bank's rights hereunder shall not be affected by the Borrower's bankruptcy or winding-up.

(iii) It shall be the Borrower's sole responsibility and liability to settle all disputes / objections with joint account holders, if any.

(iv) In addition to the above mentioned right or any other right which ICICI Bank and its group companies may at any time be entitled whether by operation of law, contract or otherwise, ICICI Bank is authorized / will be entitled to : (a) to combine or consolidate at any time all or any of the accounts and liabilities of the Borrower with or to any branch of ICICI Bank and/or its group companies; (b) to sell any of the Borrower's securities or properties held by ICICI Bank by way of public or private sale without having to institute any judicial proceeding whatsoever and retain/appropriate from the proceeds derived there from the total amounts outstanding to ICICI Bank and/or its group companies from the Borrower, including costs and expenses in connection with such sale;

(v) The Borrower unconditionally agrees, undertakes and acknowledges that ICICI Bank has an unconditional right to reduce the limits or cancel the outstanding un-drawn commitments under the Transaction Documents at any time during the currency of the Facility (including but not limited to reasons involving deterioration in Borrower's creditworthiness or

otherwise), and that ICICI Bank shall endeavour to provide prior intimation of the same to the Borrower.

Explanation: For the purpose of the above clause, deterioration in the Borrower's creditworthiness shall include without limitation:

- (a) downgrade by a Credit Rating Agency;
- (b) inclusion of the Borrower and/or any of the Directors in Reserve Bank of India's wilful defaulters list;
- (c) closure of a significant portion of the Borrower's operating capacity;
- (d) decline in the profit after tax of the Borrower by more than fifteen percent;
- (e) any adverse comment from the Auditor; and
- (f) failure of the Borrower/Obligor/Security Provider to comply with the terms and conditions of Facility Agreement and/or Security Documents.

The Borrower unconditionally agrees, undertakes to get itself rated by Credit Rating Agency/ies within a period of six months and/or at such intervals as may be decided by the Bank, failing which the Bank shall have the right to review the applicable interest rate and/or costs, charges and expenses, which shall be payable by the Borrower/obligor/security provider and on such date/s or within such period as may be specified by the Bank.

For the purposes of this Agreement "Credit Rating Agency" shall mean and refer to the domestic credit rating agencies such as Credit Analysis and Research Limited, CRISIL Limited, FITCH India and ICRA Limited and international credit rating agencies such as Fitch, Moody's and Standard & Poor's and such other credit rating agencies identified and/or recognized by the Reserve Bank of India from time to time.

(vi) In case the Borrower commits a default in payment of Secured Obligations ICICI Bank and/or RBI will have an unqualified right to disclose or publish the details of the default and the Borrower's name, its directors/ partners/member/trustee, as the case may be, as defaulters, in such manner and through such medium as ICICI Bank or RBI in their absolute discretion may think fit.

(vii) The Borrower shall, at its own expense, allow ICICI Bank to appoint auditors (or award a separate mandate to the Borrower's auditors), chartered accountants, cost accountants, forensic experts or other consultants for carrying out concurrent or special audit or examination of the Borrower, where such audit or examination is required to be conducted pursuant to regulatory requirements

(viii) ICICI Bank reserves the right to change the Borrower's address in its records if such change in address comes to the notice of ICICI Bank. ICICI Bank disclaims all liability in case of an incorrect address being maintained in its records resulting in any loss to the Borrower.

8. Event of Default

The occurrence of any one or more of the following events shall constitute an event of default ("Event of Default"):

(i) Payment Default - Default has occurred in the payment of any monies in respect of the Facility on the Due Dates, by acceleration or otherwise;

(ii) Breach of Terms – The breach of or omission to observe or default by the Borrower in observing any of its obligations under the Transaction Documents;

(iii) The Borrower and/or any other relevant person have, or there is a reasonable apprehension that the Borrower and/or any other relevant person have, voluntarily or involuntarily become the subject of proceedings under any bankruptcy or insolvency law, or are voluntarily or involuntarily dissolved, becomes bankrupt or insolvent or if the Borrower and/or any other relevant person have taken or suffered to be taken any action for its/their reorganisation, liquidation or dissolution or insolvency or bankruptcy or if a receiver or liquidator has been appointed or allowed to be appointed of all or any part of the assets of the Borrower and/or any other relevant person, or if an attachment or distraint has been levied on the assets of the Borrower and/or any other relevant person, or certificate proceedings have been taken or commenced for recovery of any dues from the Borrower and/or any other relevant person, or if one or more judgements or decrees have been rendered or entered against the Borrower and/or any other relevant person.

(iv)(a) It is or becomes unlawful for the Borrower and/or any other relevant person (including ICICI Bank) to perform any of their respective obligations under the Transaction Documents;

(v) If the security for the Facility is in jeopardy or ceases to have effect or becomes illegal, invalid, unenforceable or otherwise fails or ceases to be in effect.

(vi) If the Borrower fails to place the Securities up to the required margin and / or makes drawals under the Facility without the approval of ICICI Bank or fails to use the account other than for drawals under the Facility.

(vii) An event of default howsoever described (or any event which with the giving of notice, lapse of time, determination of materiality/likelihood or fulfilment of any other applicable condition or any combination of the foregoing would constitute an event of default) occurs under any agreement or document relating to any indebtedness of the Borrower or if any other lenders of the Borrower including financial institutions or banks with whom the Borrower has entered into agreements for financial assistance have recalled its/their assistance or any part thereof.

(viii) One or more events, conditions or circumstances (including any change in law) occur or exist, which in the sole opinion of ICICI Bank, could have a Material Adverse Effect or affect interest of ICICI Bank.

(ix) In case of downgrade of any debt Securities below BBB(-), the Borrower shall, within 30 days from notice of such downgrade as intimated by ICICI Bank, replace such debt Securities

with eligible collateral or repay proportionate exposure, failing which ICICI Bank shall have the right to reduce the eligible limit and/ or initiate recovery actions to regularize the account.

Consequences of Event of Default

(i) On the happening of any Event of Default, ICICI Bank shall, without prejudice to its rights and remedies available under the Transaction Documents and/or applicable law, subject to one (1) day prior notice to the Borrower (which period of notice the Borrower agrees is reasonable notice, given the nature of Securities involved and being dealt with), at the cost of the Borrower be entitled to exercise any or all of the following rights :

- (a) recall the Facility and call upon the Borrower to discharge the Secured Obligations in full,
- (b) enforce security created in favour of ICICI Bank,
- (c) cancel the Facility to the extent of undrawn amounts,
- (d) effect closure of the account through which the Facility is availed,

Notwithstanding anything contained herein, any sale / encashment / surrender / realization shall be done by ICICI Bank in such manner as it may deem fit at its discretion and without being accountable to the Borrower in any manner whatsoever (including the value realized upon the sale of Securities).

(ii) If any one (or more) Events of Default shall have occurred, then ICICI Bank shall, in addition to the various rights and remedies of ICICI Bank referred to in the clauses above, be irrevocably entitled and authorised to contact and require the Borrower's employers to make deduction/s from the salary payable by the employer to the Borrower and to remit the same to ICICI Bank until all of the Secured Obligations outstanding from the Borrower to ICICI Bank is/are completely discharged. The deductions shall be of such amounts, and to such extent, as ICICI Bank may communicate to the Borrower's employers. The Borrower shall not have or raise/create any objections to such deductions. No law or contract governing the Borrower and/or the Borrower's employer prevents or restricts in any manner the aforesaid right of ICICI Bank to require such deduction and payment by the Borrower's employer to ICICI Bank.

(iii) The entries made in the accounts / account books / records of ICICI Bank maintained in accordance with its usual practice and in compliance with the statutory requirements and/or a statement signed by ICICI Bank, shall be final and binding on the Borrower. Such entries and/or statement shall be prima-facie and conclusive evidence of the existence and amount of the Borrower's obligations as therein recorded in respect of the Facility.

(iv) ICICI Bank is irrevocably authorised and entitled at its sole discretion to act on the Borrower's behalf, at the Borrower's sole risk and cost, and to take all necessary steps, actions and proceedings as ICICI Bank deems fit to safeguard its interests and/or to enforce its security to receive all monies payable under or in respect of any of the Securities or under any claim made thereunder and to give a valid receipt thereof, and apply such proceeds in accordance with the terms hereof or such other manner as deemed fit by ICICI Bank.

(v) ICICI Bank shall be entitled, at the sole risk and cost of the Borrower, to engage one or, more person(s) to collect the payments towards Secured Obligations and/or to enforce or realise any security provided by the Borrower, and ICICI Bank may (for such purposes) furnish to such person(s) such information pertaining to the Borrower, the security as ICICI Bank deems fit. ICICI Bank may also delegate to such person(s) the right and authority to perform and execute all acts connected therewith, or incidental thereto, as ICICI Bank deems fit.

Information Covenants

(vi) The Borrower shall promptly:

(a) Notify ICICI Bank of the occurrence of any event or the existence of any circumstances, which constitutes or results in any declarations, representation, warranty, covenant under the Transaction Documents being or becoming untrue or incorrect in any respect.

(b) Deliver to ICICI Bank, such statements/information/accounts/documents, financial or otherwise, as may be required by ICICI Bank from time to time in relation to the Facility, the Borrower's business and operations, assets etc. within the period specified by ICICI Bank.

(c) Notify ICICI Bank of any litigation, arbitration, administrative or other proceedings initiated or threatened against the Borrower or his/her property or any of the Securities.

(d) Notify ICICI Bank of any circumstances and conditions which have/may have a Material Adverse Effect on the transaction.

(e) Notify the Bank of any material loss or damage which the Borrower may suffer due to any event, circumstance or act of God.

(f) Notify ICICI Bank of any action or step taken or legal proceedings initiated by or against it/him/her/their in any court of law for its insolvency, bankruptcy or for the appointment of a receiver, administrator, administrative receiver, trustee or similar officer of/over the Borrower's or of/over any of its assets.

9. Miscellaneous

(i) (a) ICICI Bank shall, as it may deem appropriate and necessary, be entitled to disclose all or any: (a) information and data relating to the Borrower and/or relevant person; (b) information or data relating to the Facility or any other credit facility(ies) availed / to be availed by the Borrower and/or relevant person from ICICI Bank; (c) obligations assumed / to be assumed by the Borrower in relation to the Facility; (d) default, if any, committed by the Borrower in discharge of the aforesaid obligations, to any agency/credit bureau (the "Agency") authorised in this behalf by RBI;

(b) The Agency so authorised may use, process the aforesaid information and data disclosed by ICICI Bank in the manner as deemed fit by them;

(c) The Agency so authorised may furnish for consideration, the processed information and data or products thereof prepared by them, to banks / financial institutions and other credit grantors or registered users, as may be specified by RBI in this behalf;

(d) The information and data furnished by the Borrower to ICICI Bank from time to time shall be true and correct.

(ii) ICICI Bank/its group companies can share or part with all the information, data or documents relating to Borrower's application to ICICI group companies / banks / financial institutions / credit bureaus / agencies / statutory bodies / tax authorities / central information bureaus/ such other persons as ICICI Bank / its group companies may deem necessary (or appropriate as may be required) / data by such person/s / data / products thereof to other banks / financial institutions / credit providers / users registered with such persons and shall not hold ICICI Bank / its group companies liable for use of this information.

(iii) ICICI Bank reserves the right to : (a) offer the Borrower, whose accounts have been maintained in good standing as per the credit norms of ICICI Bank, certain facilities, memberships and services at such fees and on such terms and conditions as it may deem fit; (b) waive or reduce the fees and to withdraw such benefit at any time without prior notice to the Borrower and without any liability to ICICI Bank. Any termination of the Facility because of a violation of the Loan Terms, shall automatically result in the termination of such facilities and services. ICICI Bank shall not be liable, in any way, to the Borrower, in case of defect or breach in the performance of carrying out any facilities, memberships or services or the non-performance thereof, whether by ICICI Bank or any other third party.

(iv) ICICI Bank reserves the right to revise the policies, features and benefits offered on the Facility from time to time and may notify the Borrower of any such revisions/ modification / amendments in any manner as deemed appropriate. The Borrower will be bound by such revisions/modification / amendments unless the Facility is repaid / cancelled before the date on which the revisions/changes are made.

(v) The details of all transactions recorded in the borrowing /loan account of the Borrower may be shared with credit reference agencies, lenders and/or other agencies for the purposes of assessing further applications for credit by the Borrower and/or his / her family members, and for fraud prevention.

(vi) ICICI Bank shall not be liable for any damages, losses (direct or indirect) whatsoever, due to disruption or non-availability of any of the services/ facilities due to technical fault/error or any failure in telecommunication network, electronic clearing network or any error in any software or hardware systems, beyond the control of the Bank.

Waiver

(vii) The acceptance by ICICI Bank of any payment which is less than the amounts due and owing at such time shall not constitute a waiver of ICICI Bank's right to receive payment in full at such time or at any subsequent time or a waiver of any other rights whatsoever of ICICI Bank under the Loan Terms.

(viii) No delay in exercising or omission to exercise any right, power or remedy accruing to ICICI Bank upon any default or otherwise under the Loan Terms and/or the other Transaction Documents shall impair any such right, power or remedy or shall be construed to be a waiver thereof or any acquiescence in such default, nor shall the action or inaction of ICICI Bank in respect of any default or any acquiescence by it in any default, affect or impair any right, power or remedy of ICICI Bank in respect of any other default. The rights of ICICI Bank under the Terms and the Transaction Documents may be exercised as often as necessary, are cumulative and not exclusive of their rights under the general law and may be waived only in writing and specifically and at ICICI Bank's sole discretion.

10. Assignment

(i) The Borrower shall not assign or transfer all or any of its rights, benefits and obligations under the Loan Terms and / or the Transaction Documents. ICICI Bank may assign its rights and obligations under the Loan Terms and Transaction Documents to any party or its affiliates without the prior permission of the Borrower. Notwithstanding any such assignment or transfer, the Borrower shall, unless otherwise notified by ICICI Bank, continue to make all payments under the Facility to ICICI Bank and all such payments when made to ICICI Bank shall constitute a full discharge to the Borrower from all its liabilities in respect of such payments;

(ii) Without prejudice to the aforesaid provision, ICICI Bank may (at its sole discretion), without notice to the Borrower and/or any other relevant person, share the credit risk of the whole or a part of the Facility with any other person by way of participation. Notwithstanding such participation, all rights, title, interests, special status and other benefits and privileges enjoyed or conferred upon or held by ICICI Bank under the Loan Terms and the Transaction Documents shall remain valid, effective and enforceable by ICICI Bank on the same terms and conditions and the Borrower and/or all relevant persons shall continue to discharge in full all its / their obligations under the Loan Terms and the Transaction Documents to ICICI Bank. The Borrower shall not have and shall not claim any privity of contract with such person on account of any reason whatsoever.

11. Amendments

(i) ICICI Bank shall be, at any time during the tenure of the Facility, entitled to modify or supplement or change the Loan Terms and / or any Transaction Documents including, without limitation to, changes which affect existing balances, interest charges or rates and methods of calculation. The Borrower (and all relevant person) shall be liable for all charges incurred and all other obligations under such revised terms and conditions until the Facility are repaid in full. Such changes shall be notified as specified below

(ii) ICICI Bank may give notice of any changes and/or any other matter under the Transaction Documents and/or in connection with the Facility, either through email address as recorded with ICICI Bank (which will be regarded as being in writing) or in writing by delivering them by hand or by sending them by post to the last address given by the

Borrower or on its website or any other mode as may be deemed fit by ICICI Bank. In addition, such notice will be deemed to have been served individually to the Borrower and all relevant persons. All notices / communication to ICICI Bank should be given in writing and sent by post or delivered to its operations office at ICICI Bank Limited, Loans against Securities Department, 4th floor, Springboard, 74, techno park, MIDC, Andheri East, Mumbai 400093 or wherever else situated as indicated by ICICI Bank.

(iii) Upon receipt from ICICI Bank of statement(s) giving details of: (i) the aggregate outstanding amount in respect of the Facility as on the date(s) stated in such statement(s) / the aggregate debit balance (total indebtedness) in the Account as on the date(s) stated in such statement(s); (ii) the further applicable accrued interest from the aforesaid date(s) mentioned in the aforesaid statement(s); (iii) securities, if any, created for securing the Facility / the amounts stated in the Account, the Borrower shall forward its acknowledgement of the aforesaid indebtedness specified in the aforesaid statement(s), in the form prescribed by ICICI Bank. If ICICI Bank does not receive such acknowledgement from the Borrower within a period of ten (10) days from the date of receipt of statement from ICICI Bank, the Borrower shall be deemed to have confirmed the correctness of the entries in such statement(s) and acknowledged the indebtedness for the balance mentioned in the statement(s). Non-receipt by the Borrower of statements pertaining to the Account or the incorrectness of any entry therein shall be brought to the notice of ICICI Bank by the tenth day of every month or on receipt of such statement, as the case may be.

(iv) Subject to Section 8(v) hereof, the Loan Terms and the Transaction Documents shall be binding upon and ensure to the benefit of the Borrower / the relevant person and ICICI Bank and their respective successors and assigns, heirs, executors, administrators, survivors, legal representatives, as the case may be.

(v) Bank may update terms and modify time to time and same will be updated at https://www.icici.bank.in/terms-condition?ITM=nli_cms_terms_and_conditions_footer_nav.html; which shall constitute sufficient notice to the customer of such modification/ amendments/ revisions. The customer shall be deemed to have unconditionally accepted these terms and conditions. The customer further undertakes to abide by these Terms and conditions, including any amendments/ revisions/ modifications made thereto by the Bank from time to time. (vi) The account will be used only for the purpose of Loan against securities (OD facility) and will not be permitted to use as normal current account. Bank may proceed with termination of facility if no securities are pledged within 30 days.

12. Notices

(i) All notices or other communications in connection with the Facility shall be given in writing and shall be deemed to be effective: (a) if sent by letter, when delivered personally or if dispatched by post, when recall of the letter is outside the control of the sender; (b) if sent

by e-mail or any other electronic or telecommunication mode, when sent by the sender; (c) if hosted on website, on the date of such notice or communication and
Provided, however, that no notice or communication to the Bank shall be effective unless actually received by the Bank.

(ii) All notices or communication from the Borrower to the Bank, through email, shall be from the email ID of the Borrower, as may be notified by the Borrower in writing, from time to time, and such notice or communication shall be considered valid and binding on the Borrower and the Bank shall be authorized to rely and act upon such email notices or communications, without any further checks or verification, including with regard to its validity, genuineness or accuracy.

(iii) The Borrower acknowledges and confirms that any notice provided by the Bank shall be treated by the Borrower as sufficient and reasonable notice to the Borrower and agrees to assume the liability for any non-delivery of a notice as aforesaid, by any reason of any error, electronic or otherwise.

(iv) The Borrower undertakes and agrees to indemnify the Bank against all costs, losses, charges, expenses and other liabilities incurred by the Bank in connection with the performance or enforcement of these terms and/or damages which the Bank may incur in giving effect to the Borrower's instructions acting on the instructions (received via email or any other electronic means) of or placing reliance on the information given to ICICI Bank by the Borrower or any person acting on Borrower's behalf.

In case the Borrower is a partnership firm:

No change whatsoever in the constitution of the partnership firm during the continuance / validity of the Facility shall impair or discharge the liability of any one or all of the partners. In the event of death or retirement of any partner, ICICI Bank shall at its discretion deal with the surviving and/or continuing partner/s, without affecting its rights as against the retiring partner or the heirs and legal representatives of the deceased partner, as ICICI Bank shall think fit and proper, and the retiring partner and / or the heirs, executors, administrators, legal representatives of the deceased partner shall have no claim as against ICICI Bank in respect of such dealing.

The partners named in the Application Form are the only partners of the firm named in the Application Form; Such partners shall : (i) advise ICICI Bank in writing of any changes which may take place in the partnership; (ii) not dissolve / reconstitute the partnership firm without the approval of ICICI Bank; All the partners are jointly and severally liable to ICICI Bank for performance of all obligations under the Facility.

In case the Borrower is an HUF:

ICICI Bank shall at all times be informed of any changes in the constitution of the HUF named in the Application Form by furnishing necessary documents and writings. No change whatsoever in the constitution of the HUF during the continuance / validity of the

Transaction Documents shall impair or discharge the liability of any one or all of the adult members / coparceners of the HUF and shall be binding on the HUF, its estate, effects and successors.

The Transaction Documents shall be enforceable against the Karta or any succeeding Karta of the HUF or against any and all the adult coparceners / members of the HUF.

The Karta, acting for HUF and in his personal capacity, and the other adult members / coparceners of the joint HUF named in the Application Form are the only adult members / coparceners of the HUF; The business carried on under the name and style given in the Application Form is their joint family trade, which is binding on the minor members, if any, being ancestral trade / businesses

The transactions contemplated in relation to the Facility are a part of the HUF business / trade referred to above;

The HUF business / trade is being conducted and managed by the adult members / coparceners of the HUF and all of them have been jointly and individually empowered to perform the terms of the Transaction Documents, against security or otherwise, and execute all necessary instruments, deeds, documents and writings and do all such acts, things and deeds as are necessary or incidental to the performance of the terms of the Transaction Documents, and also execute, draw, endorse, negotiate and sell cheques, bills, pro-notes, bills of exchange and other negotiable instruments on behalf of the HUF.

The Karta, acting for the HUF and in his personal capacity, and the other adult coparceners / members of the HUF also hereby indemnify and keep ICICI Bank indemnified against all actions, claims, demands, proceedings, losses, damages, costs, charges and expenses whatsoever which ICICI Bank may at any time incur, suffer, pay or sustain as a consequence of or by reason of or arising out of the transactions contemplated in the Transaction Documents, and hold themselves personally liable, jointly and severally, in respect of all transactions entered into with ICICI Bank or obligations incurred under the Transaction Documents.

13. Online Dispute Resolution

The Facility and the Loan Terms shall be governed by and in accordance with the laws of India. Any claim or dispute whatsoever (whether in contract, tort or otherwise) arising out of or in connection under the terms of Facility, including any question regarding its construction, meaning, existence, validity, breach, recall, recovery or termination, shall be resolved and settled by mediation or conciliation (if the Borrower and ICICI Bank agree to such mediation or conciliation), administered in accordance with the applicable mediation or conciliation rules of an independent online dispute resolution institution listed on ICICI Bank's website ("ODR Institutions"). Any party may appoint any listed ODR Institutions to facilitate mediation or conciliation. If one party appoints an ODR institution before the other, the ODR institution appointed by the first party shall be binding on other party. If the Borrower and ICICI Bank do not agree to mediation or conciliation, or if the mediation or conciliation fails to resolve the claim or dispute within the period stipulated in such rules or within a period of 21 days from the date of notice of appointment of mediator or conciliator

(whichever is earlier), then the claim or dispute shall be taken forward for adjudication by arbitration in terms of the applicable rules of said ODR Institution, and in accordance with the Arbitration and Conciliation Act, 1996, which shall be conducted (including for recording of evidence or tendering of documents), concluded and administered online by ODR Institution through its website/platform or mobile application. The arbitral tribunal shall consist of an independent sole arbitrator appointed in accordance with the applicable arbitration rules of the ODR Institution. The seat of arbitration proceedings shall be Mumbai. The law governing the arbitration proceedings shall be Indian law. The procedural law of arbitration shall be rules of ODR Institution. ICICI Bank may, however, in its absolute discretion, commence any legal action or proceedings arising out of the Standard Terms in any other court, tribunal or other appropriate forum, and the Borrower hereby consents to that jurisdiction.

CURRENT ACCOUNT TERMS AND CONDITIONS

I/We declare, confirm and agree:

- a) that I/We have read and understood the terms and conditions as displayed on www.icici.bank.in pertaining to the current account, mobile banking, corporates care, debit cum ATM card, Doorstep Banking which are displayed by the Bank from time to time on the website and shall be bound by the said terms and conditions. The Bank may amend the terms at its discretion and hosted on the website from time to time and I shall be responsible to check the said terms on the Banks's website from time to time.
- b) that I/we understand that the above account will be opened on the basis of the declaration made by me/us. I/We further agree that any false/misleading information given by me/us, or suppression of any material fact will render my/our account liable for closure and further action.
- c) that I/we have had no insolvency initiated against me/us nor have I/we ever been adjudicated insolvent.
- d) that I/we have not at any time defaulted under any loan taken by me/us from any other bank/institution.
- e) that I/we have read the charges applicable to the current account facility and hereby agree to bear the charges as revised from time to time by ICICI Bank at its sole discretion.
- f) I/We have also understood that continuation of the account is at ICICI Bank's sole discretion and in cases ICICI Bank is dissatisfied with the conduct of the account, ICICI Bank has the right to close the account after giving me/us 15 days' notice.